

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Squad #11	CCRB Case #: 201509544	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/17/2015 10:39 AM	Location of Incident: § 87(2)(b)	Precinct: 46	18 Mo. SOL 3/17/2017	EO SOL 3/17/2017	
Date/Time CV Reported Tue, 11/10/2015 10:28 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/10/2015 10:28 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Jacquelin Febres	29708	938467	046 PCT
2. POM Adrian Ramon	21661	952142	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Jacquelin Febres	Abuse: PO Jacquelin Febres entered and searched § 87(2)(b) in the Bronx.	§ 87(2)(b)
B.POM Adrian Ramon	Abuse: PO Adrian Ramon entered and searched § 87(2)(b) in the Bronx.	§ 87(2)(b)

Case Summary

On September 17, 2015, at approximately 10:39 a.m., PO Jacquelin Febres and PO Adrian Ramon, both of the 46th Precinct, responded to § 87(2)(b) in the Bronx with two of the building's security guards, § 87(2)(b) and § 87(2)(b) to arrest § 87(2)(b) for exposing himself to a woman who reported the incident to the officers. When § 87(2)(b) opened the apartment door, § 87(2)(b) and § 87(2)(b) entered into the apartment, immediately followed by PO Febres and PO Ramon (**Allegations A and B**). PO Febres and PO Ramon instructed § 87(2)(b) to get dressed and followed him into his bedroom. After he was dressed, § 87(2)(b) was instructed to exit the apartment. He was charged with § 87(2)(b).

§ 87(2)(g)

There is no video evidence for this case.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation because of § 87(2)(b)'s arrest
- § 87(2)(b) and § 87(2)(b) did not file a Notice of Claim (see Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers CCRB Histories

- This is § 87(2)(b)'s third CCRB complaint and § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
- PO Febres has been a member of the service for 10 years.
- PO Ramon has been a member of the service for 4 years.

Findings and Recommendations

Recommendations

Allegation A-Abuse of Authority: PO Jacquelin Febres entered and searched § 87(2)(b) in the Bronx.

Allegation B-Abuse of Authority: PO Adrian Ramon entered and searched § 87(2)(b) in the Bronx.

It is undisputed that PO Febres and PO Ramon entered § 87(2)(b) in the Bronx. § 87(2)(g) testified that when he initially opened the door—which he opened fully—he observed PO Febres, PO Ramon and two security guards, who did not say anything to him or

explain why they were there. The security guards entered into the apartment, immediately followed by the officers, without permission. Once inside, § 87(2)(b) who was only wearing what he slept in (he could not recall what that was) was instructed to get dressed and PO Febres and PO Ramon accompanied him to his bedroom. Once he was dressed, § 87(2)(b) was instructed to exit his apartment and stand in the hallway. The officers and security guards followed § 87(2)(b) out of the apartment and did not enter any additional rooms or search anywhere in the apartment. Once he had exited, PO Febres and PO Ramon handcuffed § 87(2)(b).

§ 87(2)(b) § 87(2)(b) § 87(2)(b)'s sister, testified that she received a phone call from a building maintenance worker who informed her that police had been called for her brother and when she arrived on the floor of the apartment, she observed PO Febres and PO Ramon handcuffing § 87(2)(b) in the hallway outside of the apartment. When § 87(2)(b) asked PO Febres if she had gone into the apartment, the officer told her that they had gone into the apartment because a complaint had been made. § 87(2)(b) asked the officers and the security guards if they had a warrant and was ignored until PO Febres told her that the security guards had let them into the apartment.

§ 87(2)(b) testified that a woman, identified by the investigation as § 87(2)(b), came to the security both or called the security guards to say that § 87(2)(b) had exposed his penis to her. She said she had called the police. There was video footage of § 87(2)(b) exposing himself, going into the elevator, getting off on the floor of his apartment, and going into the front door of his apartment, because there are video cameras on each floor. § 87(2)(b) believed that when the officers arrived, they watched this video. The other guard, § 87(2)(b) showed a photograph of § 87(2)(b) to the officers as well. § 87(2)(b) and § 87(2)(b) went with the officers to the apartment. § 87(2)(b) was only wearing underwear when he answered the door. § 87(2)(b) and § 87(2)(b) confirmed to the officers that § 87(2)(b) was the same perpetrator as in the security video and the photograph. PO Ramon asked § 87(2)(b) if he was alone in the apartment and if he had any weapons. § 87(2)(b) replied by saying, "No." When PO Ramon told § 87(2)(b) that he had to go with them, § 87(2)(b) went to slam the door on the officer. In response, PO Ramon used his hand to prevent the door from being closed. § 87(2)(b) told the officers that he had to go put on clothes and motioned towards his bedroom. PO Ramon followed § 87(2)(b) into the apartment and remained immediately outside of his bedroom door while he was getting dressed. PO Febres held the front door of the apartment open and in the process of doing so, stepped into the apartment. § 87(2)(b) could not recall if the officers asked § 87(2)(b) for permission to enter into the apartment but denied that § 87(2)(b) told the officers that they could not come into the apartment and denied that it appeared that § 87(2)(b) was upset about the fact that the officers had entered. The officers did not search the apartment and exited immediately after they entered. Neither § 87(2)(b) nor § 87(2)(b) entered the apartment, although § 87(2)(b) could see § 87(2)(b)'s bedroom from his vantage just outside the front door of the apartment.

§ 87(2)(b) testified that she could not recall who answered the apartment door but as soon as it was opened, the officers had a discussion with that individual at the door. She did not know what was said during the discussion because she was not paying attention and had taken a step back to allow the officers to deal with the situation. § 87(2)(b) did hear PO Febres ask the individual at the door if they could enter into the apartment and heard the individual verbally comply and allow the officers to enter. Although she did not know who was at the door, she confirmed that § 87(2)(b) was inside the apartment. § 87(2)(b) did not know why the

officers entered into the apartment and was not able to see what the officers did while they were in the apartment but stated they were inside the apartment for less than a minute. § 87(2)(b) stated that neither she nor § 87(2)(b) entered the apartment because they are not allowed to. § 87(2)(b) was in handcuffs when he was brought out of the apartment.

PO Febres testified that when she and PO Ramon responded to the scene, the criminal complainant, § 87(2)(b), informed them that § 87(2)(b) had hissed at her and pulled out his penis and stated, “Do you want to suck my dick?” When § 87(2)(b) tried to get the attention of the male security guard or maintenance worker, § 87(2)(b) ran up the stairs of the building. § 87(2)(b) provided the officers with a physical and clothing description of § 87(2)(b) but PO Febres could not recall what the descriptions were. While PO Febres and PO Ramon were discussing the complaint with § 87(2)(b) two security guards that work for the building informed them that they knew who § 87(2)(b) was, where he lived and had video surveillance of him entering his apartment and a photograph of him on one of their phones. PO Febres also stated that the video footage showed § 87(2)(b) standing in front of the building and § 87(2)(b) walking into the building with a full erection, waving at § 87(2)(b) and then running up the stairs.

PO Febres, PO Ramon and the two security guards went up to § 87(2)(b)'s apartment, while § 87(2)(b) remained downstairs. PO Febres knocked on the door of the apartment and when § 87(2)(b) opened the door, one of the security guards confirmed to PO Febres that § 87(2)(b) was who they were looking for. PO Febres also recognized § 87(2)(b) from the photograph. § 87(2)(b) was wearing pajamas, but PO Febres could not recall what he was wearing specifically except for long pants. When PO Febres explained to § 87(2)(b) that a female had filed a complaint because he had exposed himself to her, § 87(2)(b) denied it and told the officers that he had been at his apartment all morning. PO Febres told § 87(2)(b) that he had to get dressed and come with them. § 87(2)(b) then proceeded to attempt to close the door. In response, PO Febres put her foot in the door to prevent it from closing. § 87(2)(b) told PO Febres that she could not do that because it was illegal and explained that he just wanted to get dressed. PO Febres told him she was going to have to enter his apartment so that she could ensure that he didn't have weapons and then take him downstairs. PO Febres entered the apartment first and followed § 87(2)(b) to his bedroom, where she remained by the bedroom door. PO Ramon and the two security guards entered the apartment after PO Febres and stood behind her. PO Febres only traveled from the front door to § 87(2)(b)'s bedroom and denied that she, PO Ramon or the security guards entered into any additional rooms or searched anywhere in the apartment. Once § 87(2)(b) was dressed, the officers and security guards took § 87(2)(b) out into the hallway and arrested him.

PO Febres entered into the apartment because she wanted to make sure that § 87(2)(b) was not going to pull out a gun or a knife and to ensure her safety and the safety of her partner, § 87(2)(b) and the security guards. PO Febres denied that she had a reason to believe that § 87(2)(b) had a weapon at the time but wanted to maintain visual contact with him because she had prior knowledge of the building and the violent people that lived there. Once the officers escorted § 87(2)(b) to the first floor lobby, PO Febres walked § 87(2)(b) inside and gestured to where § 87(2)(b) was standing. § 87(2)(b) stated, “Yes that's him but he has changed his clothes.” He was then escorted to a police vehicle.

§ 87(2)(g)
PO Ramon testified that when § 87(2)(b) answered the door, he was dressed in boxers and told the officers that he had just been in the shower but was completely dry. One of the officers

asked § 87(2)(b) if they could enter into his apartment and although PO Ramon could not recall if it was him or PO Febres that asked for the consent to enter, § 87(2)(b) immediately said, “alright, sure” and “fine.” PO Ramon denied that § 87(2)(b) ever told them that they could not come into his apartment and denied that it appeared that he was upset about them entering. He also denied that § 87(2)(b) ever tried to shut the door on them or flee into the apartment. According to PO Ramon, the security guards did not enter the apartment and remained outside.

PO Ramon asked for consent to enter the apartment because he and his partner wanted § 87(2)(b) to get dressed but felt the need to be present while he was getting dressed to protect their safety as they did not know if § 87(2)(b) had any weapons. When PO Ramon was asked why they did not wait outside of the apartment for § 87(2)(b) to get dressed, he stated that he believed that § 87(2)(b) had already lied to him about being in the shower; therefore, he could not take anything that he said to face value. While § 87(2)(b) was getting dressed, PO Ramon remained outside of his bedroom but scanned the room with his eyes to see if he could find the clothes that § 87(2)(b) had been wearing in the video surveillance. He did not find the clothes. Once they exited the apartment, § 87(2)(b) was not handcuffed or arrested. When they returned to the lobby, PO Febres exited the building and approached § 87(2)(b) who was standing outside. PO Ramon remained in the lobby with § 87(2)(b) about four or five feet away, so that he did not suggest § 87(2)(b) was being detained. PO Febres gave PO Ramon the signal, which was a head nod, indicating to him that they had a positive show up. It was then that § 87(2)(b) was handcuffed and arrested.

§ 87(2)(b) stated that when he opened the door, both security guards and then both officers entered his apartment, without asking for consent. Neither PO Febres nor § 87(2)(b) stated that they received consent to enter the apartment but stated that § 87(2)(b) attempted to close the door when they explained to him that he was going to have to come with them. PO Febres stated that she put her foot in the door to prevent it from closing, at which point the officers and security guards entered the apartment. § 87(2)(b) stated that PO Ramon stopped the door from closing, at which point PO Ramon entered, and PO Febres crossed the threshold of the apartment, but stayed just inside the door, but the security guards never entered. Both PO Ramon and § 87(2)(b) stated that the officers asked if they could enter the apartment. PO Ramon stated that PO § 87(2)(b) said something to the effect of, “All right,” or “Sure.” § 87(2)(b) stated that she could not recall who opened the door, but whomever was asked if the officers could enter was compliant and allowed the officers to enter. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

The courts have established that warrantless entries into private homes are presumed unconstitutional unless it was justified by one of the “‘carefully delineated’ exceptions to the Fourth Amendment’s Warrant Clause.” The courts have held that in order for the hot pursuit exception to apply, officers must have probable cause to arrest an individual while he or she is outside the private location to be entered and the arrest must have been set in motion in a public place, prior to the individuals’ flight into the private location. Factors to consider in determining whether exigent circumstances justify a warrantless entry are (1) the gravity or violent nature of the offense (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause; (4) strong reason to believe that the suspect is inside the premises; (5) a likelihood the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry. People v. Hunter, 92 A.D. 3d 1277 (4th Dept. 2012) (see Board Review 10).

